Insertion of new section 135AA.

95. After section 135A of the Customs Act, the following section shall be inserted, namely:—

'135AA *Protection of data*.— (1) If a person publishes any information, that is furnished to customs by an exporter or importer under this Act, relating to the value or classification or quantity of goods entered for export from India, or import into India, along with the identity of the persons involved or in a manner that leads to disclosure of such identity, unless required so to do under any law for the time being in force or by specific authorisation of such exporter or importer, he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to fifty thousand rupees, or with both.

(2) Nothing contained in this section shall apply to—

(*a*) any publication made by or on behalf of the Central Government;
(*b*) data sourced from any publication made by or on behalf of the Central Government for analysis of trends in India's international trade and dissemination thereof.

Explanation.--For the purposes of this section, the expression "publishes" includes reproducing the information in printed or electronic form and making it available for the public. '.

सत्यमेव जयते
कोष मूलो दण्ड:
INCOME TAX DEPARTMENT